3. In order to nullify the ruling with regard to reservation in promotions, the 77th Amendment Act was enacted in 1995. It added a new provision in Article 16 that empowers the State to provide for reservation in promotions of any services under the State in favour of the SCs and STs that are not adequately represented in the state services. Again, the 85th Amendment Act of 2001 provides for 'consequential seniority' in the case of promotion by virtue of rule of reservation for the government servants belonging to the SCs and STs with retrospective effect from June 1995.

4. The ruling with regard to backlog vacancies was nullified by the 81st Amendment Act of 2000. It added another new provision in Article 16 that empowers the State to consider the unfilled reserved vacancies of a year as a separate class of vacancies to be filled up in any succeeding year or years. Further, such class of vacancies are not to be combined with the vacancies of the year in which they are being filled up to determine the ceiling of 50% reservation on total number of vacancies of that year. In brief, it ends the 50% ceiling on reservation in backlog vacancies.

5. The 76th Amendment Act of 1994 has placed the Tamil Nadu Reservations Act[9] of 1993 in the Ninth Schedule to protect it from judicial review as it provided for 69 per cent of reservation, far exceeding the 50 per cent ceiling.

6. In order to nullify the ruling with regard to relaxations in qualifying marks and standards of evaluation in matters of reservation in promotions, the 82nd Amendment Act was enacted in 2000. It added a new provision in Article 335 that empowers the state to make any provision in favour of the SCs and STs for relaxation in qualifying marks or lowering the standards of evaluation in matters of reservation in promotions.

Reservation for EWSs in Public Employment The above exception (d) was added by the 103rd Amendment Act of 2019. In order to give effect to this provision, the central government issued an order (in 2019) providing 10% reservation to the Economically Weaker Sections (EWSs) in civil posts and services in the Government of India. The benefit of this reservation can be availed by the persons belonging to EWSs who are not covered under any of the existing schemes of reservation for SCs, STs and OBCs. The eligibility criteria laid down in this regard has already been explained under Article 15.

Further, the scientific and technical posts which satisfy all the following conditions can be exempted from the purview of this reservation:

1. The posts should be in grades above the lower grade in Group A of the service concerned.

2. They should be classified as "scientific or technical" in terms of Cabinet Secretariat Order (1961), according to which scientific and technical posts for which qualifications in the natural sciences or exact sciences or applied sciences or in technology are prescribed and the incumbents of which have to use that knowledge in the discharge of their duties.

3. The posts should be for conducting research or for organizing, guiding and directing research.

4. Abolition of Untouchability

Article 17 abolishes 'untouchability' and forbids its practice in any form. The enforcement of any disability arising out of untouchability shall be an offence punishable in accordance with law.